



BUYER'S AFFIDAVIT
Use when Buyer is acquiring property for use as a residence
and that sales price does not exceed \$300,000.
(FOREIGN INVESTMENT IN REAL PROPERTY TAX ACT)
(C.A.R. Form AB, Reviewed 6/25)

1. I am the transferee (buyer) of real property located at _____.
2. The sales price (total of all consideration in the sale) does not exceed \$300,000.
3. I am acquiring the real property for use as a residence. I have definite plans that I or a member of my family will reside in it for at least 50 percent of the number of days it will be in use during each of the first two 12 month periods following the transfer of the property to me. I understand that the members of my family that are included in the last sentence are my brothers, sisters, ancestors, descendants, or spouse.
4. I am making this affidavit in order to establish an exemption from withholding a portion of the sales price of the property under Internal Revenue Code § 1445.
5. I understand that even if the sales price does not exceed \$300,000 if the other information in this affidavit is not correct, I may be liable to the Internal Revenue Service for up to 10 percent of the sales price of the property, plus interest and penalties.

Under penalty of perjury, I declare that the statements above are true, correct and complete.

Buyer _____ Date _____

Buyer _____ Date _____

IMPORTANT NOTICE: An affidavit should be signed by each individual transferee to whom it applies. Before you sign, any questions relating to the legal sufficiency of this form, or to whether it applies to a particular transaction, or to the definition of any of the terms used, should be referred to a qualified California real estate attorney, certified public accountant, other professional tax advisor, or the Internal Revenue Service.

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